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MEMBER RESOLUTION & CONSTITUTION

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Term	Definition
	present a debtor's petition under section 54A of the Bankruptcy Act; (f) the person presenting a petition against themselves under section 55 of the Bankruptcy Act; (g) the person entering into a part X personal insolvency agreement under the Bankruptcy Act; (h) the person entering into a part IX debt agreement under the Bankruptcy Act; (i) if the person is a director of any company, the company being wound up by order of a court on the grounds of insolvency; (j) the appointment of an administrator of the person under section 436A or section 436C of the Act; (k) an order for the winding up of the person being made under sections 233, 459A, 459B or 461 of the Act; (l) a resolution being passed for the winding up of the person under section 491 of the Act; (m) the person being deregistered under sections 601AB or 601AC of the Act; or (n) judgement being entered against the person.
Executive Officer	Means a person who is concerned in, or takes part in, the management of the Company (regardless of the person's designation and whether or not the person is a Director of the Company).
General Meeting	Means a meeting of Members under rule 14 and any special meeting of any class of Members under these rules or the Act.
Legal Personal Representative	Has the same meaning as in the Tax Act.
Liability	Includes any claim, action, suit, proceeding, investigation, inquiry, damage, loss, cost or expense.
Member	Means a registered holder of shares in the Company including persons who are recognised as such, if a Member suffers an Event of Disqualification.
Officer	Means: (a) a Director or Secretary of the Company; (b) an Executive Officer; (c) an employee who: (i) makes, or participates in making, decisions that affect the whole, or a substantial part, of the business of the Company; or

- (a) to receive notice of, attend and vote at a General Meeting of the Company, on the basis of one vote for each share held;
- (b) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share and to participate in the distribution of the surplus assets of the Company; and
- (c) to receive dividends as determined from time to time by the Directors to be payable to the holders of ordinary shares.

4.2 Holders of A shares have the right:

- (a) to receive notice of, attend and vote at a General Meeting of the Company, on the basis of one vote for each share held;
- (b) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share and to participate in the distribution of the surplus assets of the Company ranking equally with ordinary shares; and
- (c) to receive dividends as determined from time to time by the Directors to be payable to the holders of A shares.

4.3 Holders of B shares have the right:

- (a) to receive notice of, attend and vote at a General Meeting of the Company, on the basis of one vote for each share held;
- (b) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share and to participate in the distribution of the surplus assets of the Company ranking equally with ordinary shares; and
- (c) to receive dividends as determined from time to time by the Directors to be payable to the holders of B shares.

4.4 Holders of C shares have the right:

- (a) to receive notice of and to attend General Meetings of the Company; and
 - (b) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share and to participate in the distribution of the surplus assets of the Company ranking equally with ordinary shares,
- but do not have the right:
- (c) to receive dividends; or
 - (d) to vote at a General Meeting of the Company.

4.5 Holders of D shares have the right:

- (a) to receive notice of, attend and vote at a General Meeting of the Company, on the basis of one vote for each share held;
 - (b) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share ranking equally with ordinary shares,
- but do not have the right:
- (c) to receive dividends; or

- (b) H shares do not have the right:
 - (i) to any entitlement to, interest in, or right in respect of any dividend that the Directors determine to be payable or that may be declared from time to time in respect of a H share until that dividend is actually paid to the holder of the H share, or their nominee;
 - (ii) to receive notice of, attend and vote at a General Meeting of the Company;
 - (iii) in a winding up or reduction of capital of the Company to repayment of the capital paid up on that share; or
 - (iv) in a winding up or reduction of capital of the Company to participate in the distribution of the surplus assets of the Company;
- (c) H shares are redeemable at the option of the holder or the Company;
- (d) the Company must give at least five Business Days prior written notice to the holder of a H share of the Directors' intention to redeem the H share;
- (e) the holder of a H share must give at least 20 Business Days prior written notice to the Company of their intention to have their H share redeemed by the Company; and
- (f) where a H share is redeemed, the amount payable by the Company on redemption will be any amount less than the issue price determined at the sole discretion of the Directors.

5 POWER TO ISSUE SHARES AND VARY RIGHTS

- 5.1 Subject to the Act and any rights previously conferred on the holders of any existing share the Directors may issue shares with any other rights and terms they determine in their absolute discretion.
- 5.2 Subject to the terms of issue of each class of share, the Directors may resolve to vary the rights attaching to any class of shares, with a Special Resolution of Members in the relevant class consenting to the variation.
- 5.3 The rights conferred upon the holders of the shares of any class issued with preferred or other rights are deemed not to be varied by the creation or issue of further shares ranking equally with the first mentioned shares.
- 5.4 The Company may pay brokerage or commission in accordance with the Act by way of any combination of:
 - (a) cash;
 - (b) allotment of fully paid shares; or
 - (c) allotment of partly paid shares.
- 5.5 Unless required by law, or as otherwise provided for in these rules, the Company need only to recognise absolute rights of share ownership, and can therefore ignore (for example) any equitable, contingent, future or partial interest in any share.

9 LIEN OVER SHARES

9.1 The Company, subject to the discretion of the Directors, has a first priority lien on every share that is not fully paid for all money, whether presently payable or not, and extending to all dividends payable whether:

- (a) called or payable; or
- (b) presently payable by sole or joint holders or their Legal Personal Representative.

9.2 The Company, at the Director's discretion, may sell any shares which are the subject of a lien where:

- (a) any amount relating to the lien is presently payable;
- (b) the Company has given the Member 10 Business Days written notice demanding payment.

9.3 Any sale under this rule:

- (a) may be authorised on behalf of the Member by the Directors;
- (b) must be registered by the Company;
- (c) gives title in the shares to the purchaser, regardless of any irregularity or invalidity in connection with the transfer;
- (d) must result in the proceeds being applied by the Company in payment of all expenses in relation to the transfer, the amount presently payable with the residue (if any) paid to the Member immediately prior to the sale.

10 FORFEITURE

10.1 If a Member fails to pay any amount of a call, the Directors may serve a notice on the Member requiring payment.

10.2 The notice must:

- (a) confirm the amounts outstanding;
- (b) provide at least 10 Business Days for payment;
- (c) confirm that if the amount remains unpaid at the expiration of the period, the shares in respect of which the call was made are liable to be forfeited; and
- (d) confirm that while the amount is unpaid, the Member may not vote at General Meetings.

10.3 The Directors may forfeit any shares once rule 10.1 has been followed and a forfeited share:

- (a) includes all unpaid dividends; and
- (b) can be sold, disposed of or cancelled as the Directors determine.

10.4 A person whose shares have been forfeited:

- (a) only Directors have a right to inspect any records of the Company; and
- (b) the Directors may determine the basis, if any, on which Members can inspect records of the Company.

14 GENERAL MEETINGS

- 14.1 Any Director may in their discretion call, cancel or postpone a General Meeting.
- 14.2 The Members may call a General Meeting as provided by the Act.
- 14.3 A notice of a General Meeting must specify:
- (a) the date, place and time of meeting;
 - (b) the general nature of the business to be transacted at the meeting;
 - (c) any matters required to be specified by the Act; and
 - (d) if the meeting is to be held at two or more places, details of the technology that will be used.
- 14.4 No business may be transacted at any General Meeting unless a quorum of Members is present at all times.
- 14.5 A quorum is:
- (a) where the Company has only one Member, that Member; and
 - (b) in all other circumstances, two Members present who between them may exercise at least one-half of the votes that may be cast on a resolution at a General Meeting.
- 14.6 For the purpose of determining whether a quorum is present, a person attending as a proxy, or an attorney or as a representative of a corporation that is a Member, is deemed to be a Member.
- 14.7 If a quorum is not present within one hour from the time appointed for the meeting:
- (a) where the meeting was called by Members the meeting will be dissolved; or
 - (b) where the meeting was called by the Directors:
 - (i) the meeting stands adjourned, as the Directors determine or, if no determination, to the same day in the next week at the same time and place; and
 - (ii) if at the adjourned meeting a quorum is not present within half an hour from the time appointed for the meeting:
 - (A) two Members constitute a quorum; or
 - (B) if only one Member is present the meeting is to be dissolved.

15 NOTICES OF GENERAL MEETING

- 15.1 Notice of every General Meeting is to be given in the manner authorised by this document to:

- (a) on the election of a chairman or on a question of adjournment – it is to be taken immediately; and
 - (b) for any other question - it is to be taken as determined by the chairman in such manner and either at once or after an interval or adjournment or otherwise as the chairman directs, and the result of the poll is the resolution of the meeting at which the poll was demanded.
- 17.5 The chairman only has a deliberative vote (if any) and no casting vote.
- 17.6 Subject to the rights attaching to the shares of Members:
- (a) each Member entitled to vote may vote in person or by proxy or attorney;
 - (b) on a show of hands every person present who is a Member (or a representative of a Member) has one vote; and
 - (c) on a poll every person present in person or by proxy or attorney has one vote for each share they hold.
- 17.7 In the case of joint holders only the vote of the Member whose name appears first on the register of Members is counted.
- 17.8 An objection may be raised to the qualification of a vote only at the meeting.
- 17.9 Any such objection is to be determined by the chairman in their discretion.
- 17.10 A vote permitted following an objection is valid for all purposes.

18 APPOINTMENT OF PROXIES

- 18.1 The appointment of proxy or attorney must be:
- (a) in writing;
 - (b) legally valid;
 - (c) specific whether the proxy or attorney:
 - (i) has discretion as to how votes must be cast; or
 - (ii) must vote in a specific manner;
 - (d) structured so as to confirm whether the person appointed has the authority to speak on behalf of the appointor to the extent permitted by law.
- 18.2 If the Member is entitled to cast two or more votes, they may appoint two proxies. Where a Member appoints two proxies or attorneys:
- (a) each proxy or attorney appointed may exercise half of the Member's voting rights unless the appointment specifies otherwise;
 - (b) on a show of hands, only one proxy or attorney can vote if the instrument appointing the proxy or attorney confirms who is authorised to vote; and

21 POWERS AND DUTIES OF DIRECTORS

21.1 Subject to the Act and these rules:

- (a) the business of the Company is to be managed by the Directors;
- (b) all costs the Directors incur in forming the Company must be reimbursed by the Company;
- (c) the Directors may exercise all such powers of the Company not otherwise required to be exercised by the Company in General Meetings.

21.2 The Directors may appoint an attorney or attorneys of the Company on whatever terms they determine.

21.3 The Directors may determine how to sign all documents, including any form of negotiable instrument, on behalf of the Company.

22 PROCEEDINGS OF DIRECTORS

22.1 The Directors may meet as they determine appropriate.

22.2 Each Director must be given at least one Business Day notice of meetings of the Directors.

22.3 The Directors may meet either in person or by any technology consented to by all Directors subject, to the right of a Director to withdraw consent by notice to the Company at least one Business Day before a meeting.

22.4 Questions arising at a meeting of Directors are decided by a majority of votes of Directors present and entitled to vote and once made are deemed to be a decision of the Directors.

22.5 The chairman of a meeting has only a deliberative vote, and no casting vote.

22.6 Subject to:

- (a) the Act; and
- (b) a Director disclosing the nature and extent of any interest,
a Director may do any of the following in relation to the Company or any Related Bodies Corporate:
 - (c) enter into any arrangement with the Company;
 - (d) retain any profits arising out of any arrangement with the Company;
 - (e) vote at a meeting of the Directors and be counted in a quorum present at a meeting dealing with any arrangement between the Director and the Company;
 - (f) execute any document notwithstanding any interest which the Director has in the arrangement the subject of the instrument.

22.7 Unless there is a sole Director, the number of Directors for a quorum is two Directors.

27 NOMINEE DIRECTORS

- 27.1 If at any time the Company is a wholly owned subsidiary of a corporation then the Directors appointed by that corporation to the board of the Company may take into account the interests of the appointor corporation when acting as Directors of the Company.

28 DELEGATION

- 28.1 The Directors may delegate any of their powers to one Director.
- 28.2 A Director to whom any powers have been so delegated must exercise those powers in accordance with any directions of the Directors and any power so exercised is deemed to have been exercised by the Directors.
- 28.3 Any act by a person acting as a Director, or by a meeting of Directors or a committee of Directors attended by a person acting as a Director is valid, even if:
- (a) it was defective in the appointment of the person as a Director;
 - (b) the person was disqualified to be a Director;
 - (c) the person had vacated office; or
 - (d) the person was not entitled to vote,
- so long as the issue was unknown to the Directors when the act was done.

29 EXECUTION OF DOCUMENTS

- 29.1 The Company may have a Seal, and if it does:
- (a) the Directors must provide for the secure storage of the Seal;
 - (b) the Seal can only be used by the authority of the Directors (or of a committee of the Directors authorised by the Directors);
 - (c) the Seal must comply with the Act.
- 29.2 If the Company does not have a Seal, the Company may execute a document by having it signed by:
- (a) two Directors;
 - (b) a Director and a Secretary; or
 - (c) if the Company has a sole Director, that Director.

- 29.3 The Company may execute documents in any other manner permitted by law.

30 DIVIDENDS AND RESERVES

- 30.1 Subject to the Act, the Directors may:
- (a) pay any interim and final dividends that, in their judgment, the financial position of the Company justifies;

- (a) reinvest cash dividends by subscribing for shares or other securities in the Company or Related Bodies Corporate; and
 - (b) forgo the right to receive cash dividends and receive instead some other form of distribution of entitlement (including securities),
- as they determine.

30.14 Unclaimed dividends may be invested by the Directors as they determine for the benefit of the Company until claimed or until required to be dealt with under the law.

31 CAPITALISATION OF PROFITS

31.1 The Directors may resolve to capitalise any amount standing to the credit of any reserve or otherwise available for distribution to Members. Any amount may be applied in the proportions Members would have been entitled to a dividend, by either or both paying up:

- (a) any amounts unpaid on shares held by Members; or
- (b) in full unissued shares or debentures, to be issued to Members fully paid.

31.2 The Directors may do all things necessary to give effect to a resolution to capitalise profits, including:

- (a) adjusting the rights of the Members among themselves;
- (b) issuing fractional certificates or making cash payments where shares or debentures become issuable in fractions; and
- (c) authorising any person to make (on behalf of all the Members entitled to any further shares or debentures upon the capitalisation) an agreement with the Company providing for:
 - (i) the issue, credited as fully paid up, of further shares or debentures; or
 - (ii) the payment by the Company on their behalf of the amounts (or any part of the amounts remaining unpaid) on their existing shares by the application of their respective proportions of the sum resolved to be capitalised.

32 WINDING UP

32.1 If the Company is wound up, the liquidator may, following a Special Resolution of the Members:

- (a) divide among the Members in kind the whole, or any part, of the property of the Company;
- (b) determine the value of any property to be so divided;
- (c) determine how the division is to be carried out as between the Members or different classes of Members; and
- (d) vest the whole, or any part of the property of the Company, in trustees upon such trusts for the benefit of the contributories as the liquidator determines, provided no Member is compelled to accept any shares or other securities in respect of which there is any outstanding liability.

- (b) each word suggesting a gender includes all other genders, including neutral gender;
- (c) a reference to a person includes natural persons, firms, Companies and any form of a corporation, trustee, trust, partnership, associations, unincorporated body, government and local authority or agency, or any other entity whether or not it comprises a separate legal entity;
- (d) a reference to a rule, clause, schedule or annexure are references to this document and references to this document include every clause, the matters set out in the Overview and any schedules or annexures;
- (e) if any person signs this document on behalf of a party pursuant to a power of attorney, they confirm that there is nothing that impacts on their authority to do so;
- (f) a reference to a document or agreement (including a reference to this document) means that entire document or agreement (including all schedules or annexures) as amended, supplemented, novated, varied or replaced;
- (g) a reference to a person includes that person's estate successors, Legal Personal Representatives, executors, administrators, permitted substitutes and permitted assigns;
- (h) where any word or phrase is defined in this document, its other grammatical forms have a corresponding meaning;
- (i) a reference to this document includes the agreement recorded by this document;
- (j) headings and any table of contents are not to be taken into account in the construction of this document;
- (k) a reference to legislation or to a modified, rewritten, consolidated provision or section of legislation (including subordinate legislation) is to that legislation as amended, re-enacted or replaced, and includes any subordinate legislation issued under it;
- (l) the applicable time zone for any action required under this document is the one applying in the situs of the person responsible for performing the action;
- (m) a reference to writing includes printing, typing, copying, facsimile, and any other method of representing words, symbols, figures or drawings in a visible and tangible manner or electronically;
- (n) if any part of this document is illegal or unenforceable it can be severed, with the remaining clauses (or parts of the clause) remaining in force;
- (o) if any part of this document is illegal or unenforceable in any jurisdiction, it can be severed in the relevant jurisdiction, with the remaining clauses (or parts of the clause) remaining in force;
- (p) unless this document provides for a notice or communication to be given orally, any notice or other communication must be in writing and signed by the person giving the notice and be addressed to the address of the person to whom it is to be given;
- (q) a reference to 'month' means a calendar month;
- (r) if any provision of this document is ambiguous, it is to be interpreted broadly to widen and not restrict the provisions;

SCHEDULE 1 - DIVISION 7A AGREEMENT

1. Definitions

1.1 In this schedule all terms defined in the Constitution have the same meanings and:

Term	Definition
Borrower	Means a Member of the Company.
Default Event	Means: (a) the Borrower failing to make a payment required under this document to the Lender by the required time; (b) the Borrower failing to provide adequate security to the Lender for the Outstanding Amount, if requested by the Lender under this document; (c) the Borrower failing to comply with any of its obligations under this document; (d) the death of the Borrower; (e) the committing of an 'act of bankruptcy' within the meaning of section 40 of the Bankruptcy Act (excluding section 40(b) of the Bankruptcy Act) by the Borrower; (f) a sequestration order being made against the Borrower under section 43 of the Bankruptcy Act; (g) the Borrower presenting a declaration of their intention to present a debtor's petition under section 54A of the Bankruptcy Act; (h) the Borrower presenting a petition against themselves under section 55 of the Bankruptcy Act; (i) the Borrower entering into a part X personal insolvency agreement under the Bankruptcy Act; (j) the Borrower entering into a part IX debt agreement under the Bankruptcy Act; (k) if the Borrower is a director of a company, the company being wound up by order of a court on the grounds of insolvency; (l) the appointment of an administrator of the Borrower under section 436A or section 436C of the Corporations Act; (m) an order for the winding up of the Borrower being made under sections 233, 459A, 459B or 461 of the Corporations Act; (n) a resolution being passed for the winding up of the Borrower under section 491 of the Corporations Act;

2. Loans

- 2.1 The Lender may lend money to the Borrower at the Borrower's request.
- 2.2 This document sets out the terms of all loans made by the Lender to the Borrower unless otherwise agreed by the parties.
- 2.3 The loan dates and amounts recorded in the Lender's general ledger will be conclusive proof of the dates and amounts that the Lender has lent to the Borrower in the absence of a material error.
- 2.4 Each loan to a Borrower is a separate loan and is not to be amalgamated unless the Borrower and Lender agree in writing.

3. Repayment

- 3.1 The Principal Sum for each Yearly Period must be repaid by the Borrower to the Lender on the relevant Termination Date.
- 3.2 The Borrower may repay the Principal Sum for each Yearly Period before the relevant Termination Date for any reason, including to meet the minimum repayment requirements under the Tax Act (1936).
- 3.3 If a Borrower becomes entitled to the payment of any dividend by the Company, then unless the Borrower and Lender otherwise agree in writing, the dividend is to be set off against the amount of any loans, together with any accrued interest outstanding at the date of payment of the dividend.
- 3.4 If a Borrower requests, the Company may convert an Unsecured Loan into a Secured Loan or allow a Secured Loan to be refinanced into an Unsecured Loan.
- 3.5 If the Company agrees to the request, the term of the Secured Loan is as follows:
 - (a) on the conversion of an existing Unsecured Loan into a Secured Loan, 25 years less the period of the term already expired in relation to the existing Unsecured Loan; or
 - (b) on the conversion of an existing Secured Loan into an Unsecured Loan:
 - (i) if the period of the existing Secured Loan is more than 18 years, the maximum Term of the new Unsecured Loan will be the difference between 25 years and the actual period; or
 - (ii) if the actual period is less than 18 years, then the maximum term of the new Unsecured Loan must not exceed 7 years.

4. Interest

- 4.1 Interest on an outstanding Principal Sum for each Yearly Period will accrue from day to day during each Yearly Period on the basis of the actual number of days elapsed in that Yearly Period (while the relevant amount remained outstanding) at the Interest Rate.

8. Interpretation

8.1 In addition to the interpretation provision set out in the constitution, the following provisions apply:

- (a) it may only be amended in writing with the consent of all parties;
- (b) a party may assign their rights under this document with the written consent of each other party;
- (c) it embodies the entire agreement between the parties and to the extent permitted by law, no previous statement, representation or promise has any effect unless expressly provided in this document;
- (d) every party to this document confirms they intend to be bound when they sign it;
- (e) in relation to any party to this document, where there is more than one person, and a provision in the document where more than one party is referred to, then:
 - (i) every obligation on those persons is joint and several; and
 - (ii) any rights that those persons have are several;
- (f) there is no merger of the parties' rights and obligations on completion of any transaction contemplated by this document, such that if they have not been fulfilled and satisfied, they will remain in full force and effect;
- (g) a right or remedy under this document may be exercised by a party notwithstanding there is a conflict of interest or the party has a personal interest in exercising the right of remedy;
- (h) the rights and remedies under this document are in addition to any other right or remedy available at law;
- (i) notwithstanding any other provision of this document, any obligation of a party under this document is suspended to the extent it is impossible to act due to any cause beyond its control (including war, riot, natural disaster, labour dispute, or law taking effect) provided that party gives the other parties notice that it is unable to act within 5 Business Days of the cause; and
- (j) a rule of construction does not apply to the disadvantage of a party because the party was responsible for the preparation of this document or any part of it.

Counterparts

8.2 This document may be signed in any number of counterparts and all counterparts together make one document.

Legal advice

8.3 Each party acknowledges that it has read and understood this document and has had the opportunity to obtain independent financial and legal advice about its terms.

No waiver

8.4 A party may waive all or part of their rights under this document in writing.